

File No.: EXP202313226 (PS/00526/2023)

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 21, 2023. The complaint is directed against ROCA & ASOCIADOS ABOGADOS Y ECONOMISTAS, S.L.P. with NIF B66945197 (hereinafter, ROCA & ASOCIADOS). The reasons for the complaint are as follows:

The complainant worked at the complained company between March 13 and July 21, 2023, and states that the company (law firm) publishes the names and photographs of its employees without consent, including their own. The complainant expresses that in the coming days they will request the complained company to delete their data.

Along with the complaint, a link to the publication is provided: <https://roca.legal/team.html>.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to ROCA & ASOCIADOS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on September 29, 2023, as noted in the acknowledgment of receipt in the file.

No response has been received to this forwarding.

THIRD: On November 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity ROCA & ASOCIADOS ABOGADOS Y ECONOMISTAS, S.L.P. is a microenterprise established in 2017, with a business volume of ***AMOUNT.1 euros in 2022.

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FIFTH: On January 31, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ROCA & ASOCIADOS, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, in which it was indicated that they had a period of ten days to submit allegations.

This initiation agreement, which was notified to ROCA & ASOCIADOS in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on February 13, 2024, as noted in the acknowledgment of receipt in the file.

SIXTH: On February 27, 2024, this Agency received, in due time and form, a written submission from ROCA & ASOCIADOS in which they presented allegations against the initiation agreement, in which, in summary, they stated that:

The complainant consented to the publication of their photo on the ROCA & ASOCIADOS website, having posed for the photo and providing their resume data for inclusion in the firm's profile, following communication from the company's IT personnel via email mentioning "Tomorrow we will take photos of those new who wish," attaching two messages sent to the complainant's email notifying them of the possibility to review the photographs. Additionally, the complainant had previously published the same

data on their LinkedIn profile that appeared on the ROCA & ASOCIADOS website.

SEVENTH: On March 5, 2024, the instructing body of the procedure agreed to open a period for the practice of evidence, considering incorporated into the complaint filed by the complainant and its documentation, the documents obtained and generated in the forwarding of the complaint, which are part of the file, as well as the allegations against the initiation agreement presented by ROCA & ASOCIADOS and the documentation accompanying them.

On the same day, the instructing body of the procedure requested ROCA & ASOCIADOS to present the following:

- The information provided to the complainant regarding the publication of their photo on the website.
- The information referred to in Article 13 of the GDPR provided to employees whose photo was to be published.
- The record of processing activities of ROCA & ASOCIADOS ABOGADOS Y ECONOMISTAS, S.L.P., specifically regarding the processing of their employees' images.

The notification of the agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on March 16, 2023,

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as stated in the certificate included in the file, the procedure was carried out in accordance with the provisions of Article 41.5 of the LPACAP. The notification was reiterated by the same means on May 31, 2024, and the agreement was received on June 3, 2024, as evidenced by the acknowledgment of receipt included in the file.

Currently, there is no record in the AEPD that ROCA & ASOCIADOS has submitted a written response to the agreement for the practice of evidence agreed upon by this Agency.

EIGHTH: On July 31, 2024, the instructing body of the procedure proposed a resolution, in which it proposes that the Director of the AEPD sanction ROCA & ASOCIADOS, with NIF B6694519, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €5,000 (five thousand euros).

This proposal for resolution, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) by electronic notification, was not collected by ROCA & ASOCIADOS within the period for availability, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on August 11, 2024, as evidenced by the certificate included in the file.

NINTH: The aforementioned proposal for resolution was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from ROCA & ASOCIADOS.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On March 28, 2023, a message was sent from the email ***EMAIL.1 to the corporate email of the complainant with the following content:

“Tomorrow we will take photos of those who wish

Take a look at <https://roca.legal/team.html>

Take a look at <https://roca.legal/team.html>

to see the style we use and choose the one that suits you best

Best regards

See you tomorrow!”

SECOND: On April 27 and 28, 2023, messages were sent from the email ***EMAIL.1 to the corporate email of the complainant, with the subject “Updated photos on the website,” informing them that they

could review the photographs on the ROCA & ASOCIADOS website, both in Spanish and Catalan and English.

THIRD: In the screenshot of the ROCA & ASOCIADOS website, dated September 11, 2023, provided by the complainant along with the complaint, a photograph featuring the complainant can be observed, with their first name and surname appearing in the caption.

FOURTH: On March 5, 2024, the instructing body of the procedure agreed to open a period for the practice of evidence, during which this Agency required ROCA & ASOCIADOS to present the following:

- The information provided to the complainant regarding the publication of their photo on the website.
- The information referred to in Article 13 of the GDPR provided to employees whose photo was to be published.
- The record of the processing activities of ROCA & ASOCIADOS ABOGADOS Y ECONOMISTAS, S.L.P., specifically regarding the processing of the images of its employees.

The aforementioned agreement was not collected by ROCA & ASOCIADOS within the period for availability, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on March 16, 2023, as evidenced by the certificate included in the file, so the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP.

The notification was reiterated by the same means on May 31, 2024, and was notified on June 3, 2024, as evidenced by the acknowledgment of receipt included in the file. Currently, there is no record in the AEPD that ROCA & ASOCIADOS has submitted a written response to the practice of evidence.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, alignment, combination, restriction, erasure, or destruction;

7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States;

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is

evidence of the processing of personal data, since ROCA & ASOCIADOS publishes on its website "https://roca.legal/team.html" the following personal data of natural persons: image, name, first surname, and profession of its employees, among other processing activities.

The physical image of a person is personal data, therefore, its inclusion in publications that identify or make a person identifiable constitutes processing of personal data.

ROCA & ASOCIADOS carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

III

Response to the allegations made against the initiation agreement

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Regarding the allegations made by ROCA & ASOCIADOS concerning the initiation agreement, which are summarized as follows: the claimant consented to the publication of their photo on the ROCA & ASOCIADOS website, having posed for the photo and provided their curriculum data for inclusion in the firm's profile, following a communication from the company's IT personnel via email stating, "Tomorrow we will take photos of new people who wish to," and without having expressed any opposition to the publication after being informed in two emails that the photos were available for review. Furthermore, the claimant had previously published the same data on their LinkedIn profile that appeared on the ROCA & ASOCIADOS website.

In response to these arguments, it should be noted that the GDPR regulates the different legitimate bases for the processing of personal data in Article 6.1, and on the issue of the lawfulness of processing, Recital 40 of the aforementioned GDPR also emphasizes that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, whether in this Regulation or under another Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract."

According to what ROCA & ASOCIADOS has stated, they have based the processing of data subject to the procedure on the consent of the claimant, and in this regard, it is necessary that such consent is linked to the specific purposes of the processing of their data. Regarding the definition of consent, Article 4.11 of the GDPR represents a paradigm shift from the scheme in place prior to the aforementioned regulation, as it eliminates the so-called "presumed consent" from legal reality. Thus, this definition indicates that consent from the data subject is considered to be that "manifestation of free, specific, informed, and unequivocal will by which the data subject accepts, either by a declaration or a clear affirmative action, the processing of personal data concerning them."

Concerning the form of consent, according to Recital 32, "Consent must be given by a clear affirmative act that reflects a manifestation of free, specific, informed, and unequivocal will of the data subject to accept the processing of personal data concerning them, such as a written declaration, including by electronic means, or a verbal declaration. This could include ticking a box on a website, selecting technical parameters for the use of information society services, or any other statement or conduct that clearly indicates in this context that the data subject accepts the proposed processing of their personal data. Therefore, silence, pre-ticked boxes, or inaction should not constitute consent. Consent must be given for all processing activities carried out for the same or similar purposes. When processing has multiple purposes, consent must be given for all of them. If the consent of the data subject is to be given as a result of a request from..."

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electronic means, the request must be clear, concise, and not unnecessarily disrupt the use of the service for which it is provided."

Furthermore, elaborating on this need for a clear and unequivocal declaration, Recital 42 states that: "When processing is carried out with the consent of the data subject, the data controller must be able to demonstrate that the data subject has given consent to the processing operation. In particular, in the context of a written declaration made regarding another matter, there must be guarantees that the data subject is aware of the fact that they are giving consent and to what extent they are doing so. In accordance with Council Directive 93/13/EEC [of April 5, 1993, on unfair terms in consumer contracts], a model declaration of consent must be provided, prepared in advance by the data controller, with intelligible and easily accessible wording that uses clear and simple language and does not contain unfair clauses. For consent to be informed, the data subject must at least know the identity of the data controller and the purposes of the processing for which the personal data is intended. Consent should not be considered freely given when the data subject does not have genuine or free choice or cannot refuse or withdraw their consent without suffering any detriment."

Moreover, Article 7 of the GDPR lists the conditions that must be met for the granting of consent, and in our legal framework, the LOPDGDD states in its Article 6, titled "Processing based on the consent of the affected party," the following:

"1. In accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, the consent of the affected party is understood as any manifestation of free, specific, informed, and unequivocal will by which the affected party accepts, by means of a declaration or a clear affirmative action, the processing of personal data concerning them.

2. When the processing of data is intended to be based on the consent of the affected party for multiple purposes, it must be specifically and unequivocally stated that such consent is granted for all of them.

3. The execution of the contract may not be made conditional on the affected party consenting to the processing of personal data for purposes that are not related to the maintenance, development, or control of the contractual relationship."

Therefore, in accordance with the provisions of Article 6.1 of the GDPR, in relation to Recitals 32 and 42, when processing is based on the consent of the citizen, for such consent to be considered valid, it must be informed, refer specifically to concrete purposes, be given freely, and be unequivocal. On this matter, Guidelines 5/2020, adopted by the European Data Protection Board, provide mechanisms to assist in the interpretation of these criteria and their compliance by data controllers.

Regarding the need for consent to be informed, one must refer to Article 13 of the GDPR, which determines the information that must be provided.

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when the data is obtained from the data subject. To achieve this purpose, Article 11 of the LOPDGDD articulates the way to provide the information outlined in Article 13 of the GDPR, establishing what basic information must be provided, at a minimum, directly, and without prejudice to the proper indication of the means or place where the complete information that must be provided under the aforementioned Article 13 of the GDPR can be accessed. The elements that make up the information to be provided in the event that consent is established as the legitimizing basis for the processing must include: the identity of the data controller, the purposes of the processing or processes, what type of data is collected, the existence of the right to withdraw consent, information on whether the data will be subject to automated decisions, and the possible risks in the event that an international data transfer is planned in the absence of an adequacy decision and the corresponding safeguards.

Freely given consent means that the data subject must have a real option not to grant it. Consequently, consent cannot be considered freely given when the subject cannot refuse to grant it without suffering some type of negative consequence, a fact that must be proven by the data controller.

Finally, regarding the requirement of unambiguity, this requirement would manifest in that the data

subject accepts unequivocally the processing of their data through a deliberately affirmative action and prior to the commencement of the data processing.

The GDPR does not prescribe a specific form for recording the consent given, and therefore, it will be up to the data controller to determine that form, in line with the principle of proactive responsibility established by Article 4.2 of the GDPR, in such a way that it can prove that the data subject has validly given the aforementioned consent, that is, that it is informed, free, specific, and given unequivocally. In relation to the above and in accordance with the proven facts highlighted in this procedure, ROCA & ASOCIADOS carries out data processing consisting of taking photographs of the claimant for subsequent dissemination through the company's website based on consent, which is not in compliance with data protection regulations for the following reasons.

Thus, in those cases where the captured photographs affect identifiable persons who have not freely, specifically, informedly, and unequivocally expressed their will at the time those photographs are being taken, the consent obtained cannot be considered valid because:

1. It is not possible to prove that the claimant has been duly informed. Despite the documentation requested from ROCA & ASOCIADOS during the trial period, no document has been provided regarding the information given to the claimant about the use of their image once the photograph is taken for each and every purpose (in this case, the capturing of the image and its subsequent dissemination through the ROCA & ASOCIADOS website).

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2. It cannot be considered that the claimant has unequivocally consented to the taking of a photograph of their physical image, in light of an email in which the only thing stated is "we will take photos of the new ones who wish to." As previously noted, presumed consent has ceased to be valid within the framework of data protection regulations arising from the approval of the GDPR, and must be explicit. Likewise, the fact that the claimant had published this photograph of their image on their LinkedIn social media profile does not imply explicit consent for it to be published by the company. It should be noted that this circumstance has not been proven by the respondent.

3. However, it is important to point out that, in these cases, all the requirements mentioned earlier as necessary for the provision of valid consent must be met, which implies that the consent must also be informed and explicit, and must be freely given, with the responsible party being in a position to demonstrate that these conditions have been met in all cases.

Considering the above, the allegations made by ROCA & ASOCIADOS cannot be upheld, as they are based on the presumed consent of the claimant, in light of the email communication regarding the taking of photographs ("for the new ones who wish to"). The framework established by the GDPR for the processing of personal data, where the legitimizing basis is the consent of the interested parties, requires a clear affirmative action in the provision of such consent, which must meet each and every one of the conditions referenced above, thereby eliminating so-called tacit or presumed consent.

Therefore, to comply with data protection regulations, when the legitimizing basis for processing is the consent of the interested party, the provision of information regarding the processing is configured as a necessary prerequisite for the valid provision of consent.

For all the reasons stated, the allegations made against the initiation agreement are dismissed.

IV

Legality of Processing

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful:

"1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering into a contract;

- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2...”

Likewise, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established in accordance with the law, whether in this Regulation or under other Union or Member State law to which this Regulation applies, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is a party or for taking steps at the request of the data subject prior to entering into a contract.”

On the other hand, Article 4 of the GDPR, Definitions, in its section 11, states:

“1) (...)

11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data concerning them.”

Regarding the claimed facts, it is recorded in the file (Pages 14 to 17) a printout dated September 1, 2023, of the website “<https://roca.legal/team.html>” belonging to ROCA & ASOCIADOS, in which the personal data of the claimant is published, specifically, a photograph of their image, name, first surname, and profession, without any evidence that prior consent from the data subject was obtained nor that any of the other conditions determining the legality of the processing are met. For all these reasons, it is considered that there is evidence that the data processing by ROCA & ASOCIADOS constitutes a violation of Article 6.1 of the GDPR.

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V

Typification and Qualification of the Infraction

In accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that ROCA & ASOCIADOS has committed a violation of Article 6.1 of the GDPR, as none of the conditions established in that article that legitimize the publication of personal data of the claimant on its website are met.

The known facts constitute an infraction attributable to ROCA & ASOCIADOS, typified in Article 83.5 of the GDPR, which stipulates the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which involve a

substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.

(...)

VI

Sanction for the Infraction of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR, which indicates:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

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a) the nature, gravity, and duration of the infraction, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damages suffered;

b) the intentionality or negligence in the infraction;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infraction committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infraction and mitigate the possible adverse effects of the infraction;

g) the categories of personal data affected by the infraction;

h) the manner in which the supervisory authority became aware of the infraction, in particular whether the data controller or processor notified the infraction and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infraction.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and Corrective Measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the graduation criteria established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infraction.

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- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

As a circumstance of Article 76.2 of the LOPDGDD, understood in this case as an aggravating factor:

- The connection of the infringer's activity with the processing of personal data (section b): ROCA & ASOCIADOS, in the development of its professional activity, needs to regularly process personal data, both of clients and employees, which implies that it has sufficient experience and should have the appropriate knowledge for the processing of such data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for the imposition of a fine of €5,000 (five thousand euros).

VII

Imposition of measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...", it is agreed to impose on ROCA & ASOCIADOS the adoption of the following measure, which must be evidenced before this Agency within a period of 3 months:

- Prevent the publication of personal data on the ROCA & ASOCIADOS website without complying with the provisions of Article 6.1 of the GDPR.

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The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ROCA & ASOCIADOS ABOGADOS Y ECONOMISTAS, S.L.P., with NIF B66945197, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €5,000 (five thousand euros).

SECOND: TO ORDER ROCA & ASOCIADOS ABOGADOS Y ECONOMISTAS, S.L.P., with NIF B66945197, that pursuant to Article 58.2.d) of the GDPR, within 3 months from the date this resolution becomes final and enforceable, to prove compliance with the measures to prevent the publication of personal data on the ROCA & ASOCIADOS website without complying with the provisions of Article 6.1 of the GDPR.

THIRD: TO NOTIFY this resolution to ROCA & ASOCIADOS ABOGADOS Y ECONOMISTAS, S.L.P.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the enforceability date falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

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